PUBLIC SERVICE COMMISSION

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CASE NO.: 19-G-0309 Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid for Gas Services.

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Public Statement Hearing
New York Law School
2 Court Square
Long Island City, New York

July 31, 2019
2:00 p.m.

PRESIDING:

JAMES A. COSTELLO

Administrative Law Judge

Proceedings

SPEAKERS:

Chris Widelo .....
AARP, Assistant Director, NY

Willis Elkins .....
Newtown Creek Alliance

Sam Fodoski .....
Public Utility Law Project

Mitchell Sternback .....
Greater Jamaica Building Corporation

Proceedings

ALJ COSTELLO: I call case 19-G-0309 Proceeding on Motion of the Commission as to Rates, Charges, Rules and Regulations of the Brooklyn Union Gas Company doing business as National Grid NY for Gas Service.

My name is James Costello, I'm an Administrative Law Judge with the Department of Public Service and I've been assigned to this proceeding. With me here today is Commissioner Diane Burman, she's one of the Commissioners that will ultimately decide what the company's rates and conditions of service will ultimately be.

COMM. BURMAN: Thank you. First of all I think its very good that we are here, it's such a wonderful setting and I really appreciate being here.

Today my role is really just as a listener. I'm one of five Commissioners at the Public Service Commission, and have been on since 2013. I try to get to as many Public Statement Hearings as I can because I think it's important to listen to what the community has to say and bring that back to my fellow

Proceedings

Commissioners.

So, again, my role is really just as a listener, and I thank each and every one who came out today.

If you do speak, feel very comfortable sharing your thoughts, and I really appreciate it. So, thank you.

ALJ COSTELLO: Thank you, Commissioner Burman.

We're here today to listen to your comments and to summarize, and what we'll do is we'll summarize and report your comments to the Commissioners that will be deciding this case.

This hearing was scheduled pursuant to a Notice that was issued July 10, 2019, and it was also publicized in a press release issued by the Department of Public Service.

For purposes of the Public Statement Hearing, as I said earlier, if you intend to speak and haven't done so already, please fill out a card at the desk in the back and that way we can call your name and you can come up and make your comments. Using the

Proceedings

speaker cards I will call the speaker up front and ask them to speak into the microphone. The statements that you make here today will be transcribed by a court reporter. A transcript will be available after week or two after the Public Statement Hearings and they are available on the Department of Public Service Website, just look under the case number which is 19-G-0309.

I will ask everyone, if you haven't done so already, to please silence cellphones your cell phones or any other electronic devices you may have. Before we begin, if anyone has any questions, anything to ask me about the process?

(No response.)

ALJ COSTELLO: If not we'll begin with the first speaker who is Tom Grech.

(No response.)

ALJ COSTELLO: Okay, we'll go on to Chris Widelo.

MR. WIDELO: Hi, good afternoon, my name is Chris Widelo, I'm the Associate State Director for AARP here in New York. And on behalf of our, I'm here on behalf our nearly

Proceedings

three quarters of a million members that are here in the five boroughs, many of them in the areas of Brooklyn, Staten Island and Queens.

And on behalf of those members in those areas, we oppose the rate increase request of Brooklyn Union Gas, otherwise know as, National Grid New York or Key Span East New York.

Rate increases have a greater impact on older customers and households with lower incomes. Too often, older adults with low or fixed incomes must choose between cutting back on energy expenditures and reducing spending for other necessities such as food and medicine. Older adults may ends up risking their health or comfort.

When home energy prices are high, older adults may be unable to adequately cool and heat their homes. Such exposure can lead to a host of adverse health outcomes. AARP has consistently heard from our members across New York State and New York City that many struggle to pay utility bills and make ends meet.

In addition, they have also been absorbing the last three years of rate increases set in

Proceedings

the last rate case. According to the Public Utility Law Project, an average of 15% of National Grid's ratepayers continue to fall more than sixty days behind, that's two billing periods, on paying their monthly bills. An ever larger percentage of customers are likely to be more than one month behind paying their bills.

National Grid is seeking an 18 percent delivery charge increase, translating to $16.50 a month more on the average bill, or, over two hundred dollars a year. That's over $236 million in all. This rate increase is unacceptable for AARP. We urge the PSC to carefully scrutinize this request.

AARP is also concerned about the utility's requirement that elderly and disabled customers physically come into the office to negotiate payment arrangements. The company should allow customers to do this over the phone. We further are alarmed at the cost of superfund cleanups which could add one billion to two billion to customers' bills over time.

The PSC must find a solution that does

Proceedings

not unfairly burden ratepayers.

Finally, we also encourage the utility to ensure that eligible customers are enrolled in low income rate and other utility and non-utility assistant programs.

Thank you for the opportunity to come today.

ALJ COSTELLO: Thank you Mr. Widelo.

Our next speaker is Willis Elkins.

MR. ELKINS: Hello and thank you for having me, my name is Willis Elkins, I'm a resident of Greenpoint, I Chair the Brooklyn Community Board Environmental Protection Committee and I Co-Chair the Newtown Creek Superfund Committee Advisory Group.

However, I'm here today to speak as my role as Executive Director or the Newtown Creek Alliance.

Out organization has worked since 2002 to reveal, restore and revitalize Newtown Creek, a water body that has suffered from over a hundred and fifty years of environmental degradation.

Designated as the fifth superfund site in

Proceedings

2010, we're still waiting for record decision on comprehensive cleanup of the creek's toxic settlements and numerous pollutions sources.

I'm here today to voice our concern about the proposed rate increase that National Grid is pursuing. In short, we are fully opposed to National Grid offloading one hundred percent of their superfund related cost onto their customers. For residents that live in the neighborhood surrounding Newtown Creek, including Greenpoint, East Williamsburg and Bushwick, we are already paying for the environmental negligence of National Grid's predecessor company, Brooklyn Union Gas.

Historic contamination from former manufacture gas plants along the creek have degraded our soils and poisoned our waterway, creating significant health risks for local workers and residents alike.

There are areas in Newtown Creek where coal tar from the river bottom literally bubbles up to (inaudible) water, endangering marine wild life and restricting the community's ability to safely interact with

what was once a natural resource, a phenomena you see on a regular basis on the water connecting water quality test. It is a bleak reminder of the damage done to our planet in pursuit of economic progress.

National Grid is one of the potentially responsible parties, PRPs, identified by the EPA as part of the Newtown Creek Remediation. As such, the company has a legal obligation to cleanup the mess they helped create, hence the word, responsible.

Pushing their cleanup cost on to those who have already suffered from the historic negligence is not only irresponsible, it's insulting to our communities. We are unaware of any instance in New York State where a public utility has captured one hundred percent of environmental remediation cost from their customers and we can't understand the rationale to allow for such an approach here.

Additionally, given that Newtown Creek Superfund is still in the investigation stage, and actually remediation won't begin for another five to ten years, we are concerned

about the precedent this rate increase might set, with National Grid's Superfund related cost will likely increase significantly in the coming decades.

Secondly, we would like to comment on the second item relating to National Grid, the construction of the renewable natural gas project in the Newtown Creek waste water treatment, which utilizes municipal organic waste (inaudible) generating methane for National Grid's system.

Overall, we are supportive of the project as it creates a renewable energy source that can reduce greenhouse gas admissions and shift our consumption away from destructive fossil fuels. There are however outstanding concerns about the local impacts that may result from the project, including the amount of truck traffic that may be added to already overwhelmed truck routes in Greenpoint, East Williamsburg and Bushwick.

It is unclear to us how the financial arrangement of the project, which utilizes significant city-owned and maintained

Proceedings

infrastructure, including sanitation's organic collection an the biogas adjustors at the DEP treatment plant, may be benefiting National Grid.

We would like to see greater financial transparency for this project, as well as a better understanding of how it may benefit or negatively impact the Greenpoint Community.

In summary, we believe it is just immoral for a public utility to shift the costs of their environment responsibilities onto its customers.

Additionally, communities who have long suffered from the (inaudible) of energy and waste related infrastructure need to be protected from new developments, that, while beneficially regionally, further contribute to the already high communal exposure burdens borne by creek side communities.

Lastly we ask that proposed rate increase be evaluated in relationship to the goals of the recently passed Climate Leadership And Community Protection Act, which seeks an 85 percent reduction in greenhouse gas admissions

by 2050.

Thank you all for your time and consideration and comments on this important issue.

ALJ COSTELLO: Thank you.

Our next speaker is Sam Fodoski.

MS. FODOSKI: Good afternoon thank you to the ALJ, the Commissioner, National Grid employees, customers, and also other advocates for being here today.

My name is Sam Fodoski and I'm employed by the Public Utility Law Project.

PULP is a forty year old nonprofit whose mission is to educate, advocate and litigate on behalf of low and fixed income utility customers.

We're an active party in this case, we will be filing testimony, rebuttal testimony in the future.

Currently National Grid seeks double digit delivery increase, which is going to end up as the company stated earlier, increasing monthly bills by $13.13 on average to many of these customers.

Proceedings

Here in Queens, 315,000 people live in poverty. These statistics include 17 percent of all seniors and 17 percent of all families with children. When you consider also the working poor, so people not to be considered below the poverty line but people struggling to pay their bills every month, that number goes up to 57 percent of the residents in this area.

A thirteen dollar increase could be devastating for so many of these people, who are already choosing between paying their bill to keep the gas on and being able to buy food, medicine and school supplies for their children.

Additionally, we wanted to discuss the current gas moratorium that is occurring here in the City. As of right now there is no new gas being provided to either residential or businesses and customers. Because of that we see startups struggling, we're also seeing residents struggling, and of course this is very, very worrying to us. We really want to know more about how National Grid is going to mitigate the damage that has already been done

by this and we're really asking for a full investigation and more transparency with this issue.

We need to discuss sustainability as far as our future goes with energy and we know that New York has created some really amazing environmental goals and we would really like to see these go through.

This moratorium happened abruptly, without notice to customers. PULP has gotten many calls from consumers who began construction, had their gas shutoff, who were not told they were not going to be able to restart their gas until after they came back to do it. This has come from everyone, from residents, to small businesses to even local electeds. Additionally, this can force customers into electric and as we've heard about the issues with Con Edison currently going on, can Con Ed handle this potential?

We are also questioning why we have been seeing customers emails being used by National Grid to encourage customers to lobby their elected officials, to push for the pipeline.

Proceedings

We have never seen anything like this before and we would really like a little more information about that.

To conclude, we are asking the Commission to really look into this to determine fair and affordable rates for all customers. We are pushing the superfund cleanup is not totally put on the ratepayers, and we are also asking for an investigation into the current moratorium.

Thank you.

ALJ COSTELLO: Thank you. Tom Grech?

(No response.)

ALJ COSTELLO: Mitchell Sternback?

MR. STERNBACK: Good afternoon. My name is Mitchell Sternback, I'm the director of resource development for the Greater Jamaica Building Corporation, I'm making the remarks from the Chief Executive Officer, who is in transit, but obviously we don't want to delay the hearing today, so I will present the remarks that she was going to give.

Good afternoon, as president and chief executive officer of Greater Jamaica

Proceedings

Development Corporation, it is my pleasure to speak in support of National Grid's rate proposal currently under review.

Greater Jamaica Development Corporation is proud to serve the residents of Jamaica and Southeast Queens. Formed in 1967, we work to improve the lives of people who live and work in our service area.

We are delighted that private and public interest in Jamaica is surging. This expanded economic growth, however, necessarily triggers the need for a strong energy ecosystem.

Our mission promoting responsible development is reliant on the civic minded partners in the private and pubic sector. National Grid through their commitment to safe energy delivery and long term growth exemplifies this model. In fact we conduct regular meetings with National Grid to discuss upcoming development in Jamaica and confirm their capacity to meet growing energy needs in this area. Accordingly, they know that a key part of our core strategy is to encourage residential growth and responsible commercial

Proceedings

activity.

The ability to meet increasing demand requires significant infrastructure investment and constantly improving safety standards by National Grid. We are aware of the proposed increase in the delivery monthly charge and believe it is reasonable and consistent with their needs to maintain natural gas infrastructure and implement new technology.

What the region cannot afford is uncertainty in supply or delivery of natural gas and this rate proposal will alleviate that concern. National Grid is responsive to business and residential needs in both Southeast Queens and the entire region, their commitment to a safe, reliable and sustainable energy delivery system drives economic progress.

As key stakeholders in Queens, we know National Grid is regarded as a positive force for responsible economic development.

Thank you for your time today.

ALJ COSTELLO: Thank you.

Once again for Tom Grech?

Proceedings

(No response.)

ALJ COSTELLO: At this time I've come to the end of the speakers that we have. We will stay here until three o'clock in case anyone else comes forward and wants to make a statement, but at this time we will go off the record and will go back on record, if somebody else comes in we will go back on the record for that comment. Thank you.

(Off the record.)

ALJ COSTELLO: Back on the record.

It is now three o'clock. We have no further speakers at this Public Statement hearing so we are adjourning this Public Statement hearing. We will have another information session this evening at six p.m. and another Public Statement hearing at seven p.m. at Brooklyn Borough Hall, 209 J Street, Brooklyn, New York, 11201.

With that we are adjourned.

Thank you everybody.

(Time noted: 3:01 p.m.)

Proceedings

STATE OF NEW YORK)
) ss.
COUNTY OF WESTCHESTER)

I, DEIRDRE SMITH, Court Reporter and Notary Public with and for the County of Westchester, State of New York, do hereby certify that I reported the proceedings that are hereinbefore set forth, and that such transcript is a true and accurate record of said proceedings.

I further certify that I am not related to any of the parties to this action by blood or marriage, and that I am in no way interested in the outcome of this matter.

WITNESS MY HAND, this 7th day of August, 2019.

Deirdre Smith

Deirdre Smith — My commission expires:
Notary Public — April, 2020

A

AARP (5) 2:6 5:24 6:20 7:15,17
ability (2) 9:25 18:3
able (2) 14:13 15:14
abruptly (1) 15:10
absorbing (1) 6:24
accurate (1) 20:12
Act (1) 12:24
action (1) 20:15
active (1) 13:18
activity (1) 18:2
add (1) 7:23
added (1) 11:20
addition (1) 6:24
Additionally (4) 10:22 12:14 14:16 15:18
adequately (1) 6:18
adjourned (1) 19:21
adjourning (1) 19:15
adjustors (1) 12:3
Administrative (2) 1:14 3:8
admissions (2) 11:15 12:25
adults (3) 6:11,15,18
adverse (1) 6:20
Advisory (1) 8:16
advocate (1) 13:15
advocates (1) 13:10
afford (1) 18:11
affordable (1) 16:7
afternoon (4) 5:22 13:8 16:16,24
alarmed (1) 7:22
alike (1) 9:20
ALJ (12) 3:2 4:9 5:17,20 8:9 13:6,9 16:13,15 18:24 19:3,12
alleviate (1) 18:13
Alliance (2) 2:7 8:19
allow (2) 7:20 10:21
amazing (1) 15:7
amount (1) 11:19
appreciate (2) 3:18 4:7
approach (1) 10:21
April (1) 20:23
area (3) 14:9 17:9,23
areas (3) 6:3,6 9:21
arrangement (1) 11:24
arrangements (1) 7:20
asking (3) 15:2 16:5,9
assigned (1) 3:9
assistant (2) 2:6 8:6
Associate (1) 5:23
August (1) 20:19
available (2) 5:5,7
average (3) 7:3,12 13:24
aware (1) 18:6

B

back (7) 3:25 4:22 6:12 15:15 19:8 19:9,12
basis (1) 10:3
began (1) 15:12
behalf (4) 5:25,25 6:5 13:16
believe (2) 12:10 18:8
beneficially (1) 12:18
benefit (1) 12:8
benefiting (1) 12:4
better (1) 12:8
bill (2) 7:12 14:12
billing (1) 7:5
billion (2) 7:23,23
bills (6) 6:23 7:6,9,24 13:24 14:8
biogas (1) 12:3
bleak (1) 10:4
blood (1) 20:15
Board (1) 8:14
body (1) 8:22
borne (1) 12:20
Borough (1) 19:19
boroughs (1) 6:3
bottom (1) 9:22
bring (1) 3:25
Brooklyn (8) 1:5 3:5 6:4,7 8:13 9:15 19:19,20
bubbles (1) 9:23
Building (2) 2:10 16:19
burden (1) 8:2
burdens (1) 12:19
Burman (3) 3:11,15 4:10
Bushwick (2) 9:13 11:22
business (2) 3:5 18:15
businesses (2) 14:20 15:17
buy (1) 14:13

C

call (3) 3:2 4:23,25
calls (1) 15:12
capacity (1) 17:22
captured (1) 10:18
card (1) 4:22
cards (1) 4:25
carefully (1) 7:16
case (7) 1:3 3:2 4:14 5:8 7:2 13:18 19:5
cell (1) 5:12
cellphones (1) 5:11
certify (2) 20:9,14
Chair (1) 8:13
charge (2) 7:11 18:7
Charges (2) 1:4 3:4
chief (2) 16:20,24
children (2) 14:5,15
choose (1) 6:12
choosing (1) 14:12
Chris (3) 2:5 5:20,23
City (3) 1:8 6:22 14:18
city-owned (1) 11:25
civic (1) 17:15
cleanup (4) 9:3 10:11,13 16:8
cleanups (1) 7:22
Climate (1) 12:23
Co-Chair (1) 8:15
coal (1) 9:22
collection (1) 12:3
come (5) 4:23 7:19 8:7 15:16 19:3
comes (2) 19:6,9
comfort (1) 6:16
comfortable (1) 4:6
coming (1) 11:5
COMM (1) 3:15
comment (2) 11:6 19:10
comments (4) 4:12,13,24 13:4
commercial (1) 17:25
commission (6) 1:2,3 3:3,21 16:5 20:22
Commissioner (3) 3:10 4:9 13:9
Commissioners (4) 3:11,20 4:2,14
commitment (2) 17:17 18:17
Committee (2) 8:15,16
communal (1) 12:19
communities (3) 10:16 12:14,20
community (4) 3:24 8:14 12:9,24
community's (1) 9:25
company (6) 1:5 3:5 7:20 9:15 10:10 13:23
company's (1) 3:12
comprehensive (1) 9:3
Con (2) 15:19,20
concern (2) 9:5 18:14
concerned (2) 7:17 10:25
concerns (1) 11:17
conclude (1) 16:5
conditions (1) 3:13
conduct (1) 17:19
confirm (1) 17:21
connecting (1) 10:4
consider (1) 14:5
consideration (1) 13:4
considered (1) 14:6
consistent (1) 18:8
consistently (1) 6:21
constantly (1) 18:5
construction (2) 11:8 15:12
consumers (1) 15:12
consumption (1) 11:16
contamination (1) 9:16
continue (1) 7:4
contribute (1) 12:18
cool (1) 6:18
core (1) 17:24
Corporation (4) 2:10 16:19 17:2,5
cost (5) 7:22 9:9 10:13,19 11:4
Costello (13) 1:13 3:2,7 4:9 5:17

5:20 8:9 13:6 16:13,15 18:24 19:3,12
costs (1) 12:11
County (2) 20:5,8
course (1) 14:22
court (3) 1:8 5:4 20:7
create (1) 10:11
created (1) 15:7
creates (1) 11:14
creating (1) 9:19
creek (11) 2:7 8:15,18,21 9:11,17 9:21 10:9,22 11:9 12:20
creek's (1) 9:3
current (2) 14:17 16:10
currently (3) 13:21 15:20 17:4
customers (17) 6:10 7:7,18,21 8:4 9:10 10:20 12:13 13:10,17,25 14:20 15:11,18,23,24 16:7
customers' (1) 7:24
cutting (1) 6:12

D

d/b/a (1) 1:5
damage (2) 10:5 14:25
day (1) 20:19
days (1) 7:5
decades (1) 11:5
decide (1) 3:12
deciding (1) 4:14
decision (1) 9:2
degradation (1) 8:24
degraded (1) 9:18
Deirdre (2) 20:7,22
delay (1) 16:21
delighted (1) 17:10
delivery (6) 7:11 13:22 17:18 18:7 18:12,18
demand (1) 18:3
DEP (1) 12:3
Department (3) 3:8 4:18 5:7
Designated (1) 8:25
desk (1) 4:22
destructive (1) 11:16
determine (1) 16:6
devastating (1) 14:11
development (6) 16:18 17:2,5,15 17:21 18:22
developments (1) 12:17
devices (1) 5:12
Diane (1) 3:11
digit (1) 13:21
director (4) 2:6 5:24 8:18 16:17
disabled (1) 7:18
discuss (3) 14:16 15:5 17:20
doing (1) 3:5
dollar (1) 14:10
dollars (1) 7:13
double (1) 13:21
drives (1) 18:18

E

earlier (2) 4:20 13:23
East (3) 6:8 9:12 11:21
economic (4) 10:6 17:12 18:18,22
ecosystem (1) 17:13
Ed (1) 15:20
Edison (1) 15:20
educate (1) 13:15
either (1) 14:19
elderly (1) 7:18
elected (1) 15:25
electeds (1) 15:17
electric (1) 15:18
electronic (1) 5:12
eligible (1) 8:4
Elkins (4) 2:7 8:10,11,12
emails (1) 15:23
employed (1) 13:12
employees (1) 13:10
encourage (3) 8:3 15:24 17:24
endangering (1) 9:23
ends (2) 6:15,23
energy (9) 6:13,17 11:14 12:15 15:6 17:13,18,22 18:18
enrolled (1) 8:4
ensure (1) 8:4
entire (1) 18:16
environment (1) 12:12
environmental (5) 8:14,23 9:14 10:19 15:8
EPA (1) 10:9
evaluated (1) 12:22
evening (1) 19:17
everybody (1) 19:22
executive (3) 8:18 16:20,25
exemplifies (1) 17:19
expanded (1) 17:11
expenditures (1) 6:13
expires (1) 20:22
exposure (2) 6:19 12:19

F

fact (1) 17:19
fair (1) 16:6
fall (1) 7:4
families (1) 14:4
far (1) 15:5
feel (1) 4:6
fellow (1) 3:25
fifth (1) 8:25
fifty (1) 8:23
filing (1) 13:19
fill (1) 4:21
Finally (1) 8:3
financial (2) 11:23 12:6
find (1) 7:25
first (2) 3:15 5:18
five (3) 3:20 6:3 10:25
fixed (2) 6:12 13:16
Fodoski (4) 2:8 13:7,8,12
food (2) 6:14 14:13
force (2) 15:18 18:21
Formed (1) 17:7
former (1) 9:16
forth (1) 20:11
forty (1) 13:14
forward (1) 19:6
fossil (1) 11:16
front (1) 5:2
fuels (1) 11:17
full (1) 15:2
fully (1) 9:7
further (4) 7:21 12:18 19:14 20:14
future (2) 13:20 15:6

G

gas (17) 1:5,6 3:5,6 6:7 9:15,17 11:8,15 12:25 14:13,17,19 15:13 15:14 18:9,13
generating (1) 11:11
give (1) 16:23
given (1) 10:22
go (5) 5:20 15:9 19:7,8,9
goals (2) 12:22 15:8
goes (2) 14:8 15:6
going (5) 13:22 14:24 15:14,20 16:23
good (5) 3:16 5:22 13:8 16:16,24
gotten (1) 15:11
greater (6) 2:10 6:9 12:6 16:18,25 17:5
Grech (3) 5:18 16:13 18:25
greenhouse (2) 11:15 12:25
Greenpoint (4) 8:13 9:12 11:21 12:9
Grid (18) 1:5 3:6 6:8 7:10 9:6,8 10:7 11:7 12:5 13:9,21 14:24 15:24 17:17,20 18:6,14,21
Grid's (5) 7:4 9:14 11:3,12 17:3
Group (1) 8:16
growing (1) 17:22
growth (3) 17:12,18,25

H

Hall (1) 19:19
HAND (1) 20:19
handle (1) 15:20
happened (1) 15:10
health (3) 6:16,20 9:19
heard (2) 6:21 15:19
hearing (7) 1:7 4:15,20 16:22

19:15,16,18
Hearings (2) 3:23 5:6
heat (1) 6:19
Hello (1) 8:11
helped (1) 10:11
hereinbefore (1) 20:11
Hi (1) 5:22
high (2) 6:17 12:19
historic (2) 9:16 10:14
home (1) 6:17
homes (1) 6:19
host (1) 6:20
households (1) 6:10
hundred (4) 7:13 8:23 9:8 10:18

I

identified (1) 10:8
immoral (1) 12:10
impact (2) 6:9 12:9
impacts (1) 11:18
implement (1) 18:10
important (2) 3:24 13:4
improve (1) 17:8
improving (1) 18:5
inaudible (3) 9:23 11:11 12:15
include (1) 14:3
including (3) 9:12 11:19 12:2
income (2) 8:5 13:16
incomes (2) 6:11,12
increase (10) 6:6 7:11,14 9:6 11:2 11:4 12:21 13:22 14:10 18:7
increases (2) 6:9,25
increasing (2) 13:23 18:3
information (2) 16:4 19:17
infrastructure (4) 12:2,16 18:4,10
instance (1) 10:17
insulting (1) 10:16
intend (1) 4:20
interact (1) 9:25
interest (1) 17:11
interested (1) 20:16
investigation (3) 10:23 15:3 16:10
investment (1) 18:4
irresponsible (1) 10:15
Island (2) 1:8 6:4
issue (2) 13:5 15:4
issued (2) 4:16,17
issues (1) 15:19
item (1) 11:7

J

J (1) 19:19
Jamaica (7) 2:10 16:18,25 17:5,6 17:11,21
James (2) 1:13 3:7
Judge (2) 1:14 3:8
July (2) 1:9 4:16

K

keep (1) 14:13
key (3) 6:8 17:23 18:20
know (5) 6:7 14:24 15:6 17:23 18:20

L

larger (1) 7:7
Lastly (1) 12:21
Law (6) 1:7,14 2:9 3:8 7:3 13:13
lead (1) 6:19
Leadership (1) 12:23
legal (1) 10:10
life (1) 9:24
line (1) 14:7
listen (2) 3:24 4:11
listener (2) 3:20 4:4
literally (1) 9:22
litigate (1) 13:15
little (1) 16:3
live (3) 9:10 14:2 17:8
lives (1) 17:8
lobby (1) 15:24
local (3) 9:19 11:18 15:17
long (3) 1:8 12:14 17:18
look (2) 5:8 16:6
low (3) 6:11 8:5 13:16
lower (1) 6:10

M

maintain (1) 18:9
maintained (1) 11:25
making (1) 16:19
manufacture (1) 9:17
marine (1) 9:24
marriage (1) 20:16
matter (1) 20:17
medicine (2) 6:15 14:14
meet (3) 6:23 17:22 18:3
meetings (1) 17:20
members (3) 6:2,5,21
mess (1) 10:11
methane (1) 11:11
microphone (1) 5:3
million (2) 6:2 7:14
minded (1) 17:15
mission (2) 13:15 17:14
Mitchell (3) 2:10 16:15,17
mitigate (1) 14:25
model (1) 17:19
month (3) 7:8,12 14:8
monthly (3) 7:6 13:23 18:7
moratorium (3) 14:17 15:10 16:11
Motion (2) 1:3 3:3
municipal (1) 11:10

N

name (6) 3:7 4:23 5:22 8:12 13:12 16:16
National (23) 1:5 3:6 6:7 7:4,10 9:6 9:8,14 10:7 11:3,7,12 12:4 13:9 13:21 14:24 15:23 17:3,17,20 18:6,14,21
natural (4) 10:2 11:8 18:9,12
nearly (1) 5:25
necessarily (1) 17:12
necessities (1) 6:14
need (3) 12:16 15:5 17:13
needs (3) 17:22 18:9,15
negatively (1) 12:9
negligence (2) 9:14 10:15
negotiate (1) 7:19
neighborhood (1) 9:11
never (1) 16:2
new (15) 1:7,8 5:24 6:8,8,21,22 10:17 12:17 14:18 15:7 18:10 19:20 20:3,9
Newtown (9) 2:7 8:15,18,21 9:11 9:21 10:9,22 11:9
non-utility (1) 8:6
nonprofit (1) 13:14
Notary (2) 20:8,23
noted (1) 19:23
notice (2) 4:16 15:11
number (2) 5:9 14:8
numerous (1) 9:4
NY (2) 2:6 3:6

O

o'clock (2) 19:5,13
obligation (1) 10:10
obviously (1) 16:21
occurring (1) 14:17
office (1) 7:19
officer (2) 16:20,25
officials (1) 15:25
offloading (1) 9:8
Okay (1) 5:20
old (1) 13:14
older (4) 6:10,11,15,17
once (2) 10:2 18:25
opportunity (1) 8:7
oppose (1) 6:6
opposed (1) 9:7
organic (2) 11:10 12:2
organization (1) 8:20
outcome (1) 20:17
outcomes (1) 6:20
outstanding (1) 11:17
Overall (1) 11:13
overwhelmed (1) 11:21

P

p.m (4) 1:10 19:17,19,23

part (2) 10:9 17:24
parties (2) 10:8 20:15
partners (1) 17:16
party (1) 13:18
passed (1) 12:23
pay (2) 6:23 14:7
paying (4) 7:6,8 9:13 14:12
payment (1) 7:20
people (5) 14:2,6,7,11 17:8
percent (7) 7:10 9:8 10:18 12:25 14:3,4,9
percentage (1) 7:7
periods (1) 7:6
phenomena (1) 10:2
phone (1) 7:21
phones (1) 5:12
physically (1) 7:19
pipeline (1) 15:25
planet (1) 10:5
plant (1) 12:4
plants (1) 9:17
please (2) 4:21 5:11
pleasure (1) 17:2
poisoned (1) 9:18
pollutions (1) 9:4
poor (1) 14:6
positive (1) 18:21
potential (1) 15:21
potentially (1) 10:7
poverty (2) 14:3,7
precedent (1) 11:2
predecessor (1) 9:15
present (1) 16:22
president (1) 16:24
PRESIDING (1) 1:12
press (1) 4:17
prices (1) 6:17
private (2) 17:10,16
proceeding (3) 1:3 3:3,10
proceedings (21) 2:1 3:1 4:1 5:1 6:1 7:1 8:1 9:1 10:1 11:1 12:1 13:1 14:1 15:1 16:1 17:1 18:1 19:1 20:1,10,12
process (1) 5:15
programs (1) 8:6
progress (2) 10:6 18:19
project (8) 2:9 7:3 11:9,13,19,24 12:7 13:13
promoting (1) 17:14
proposal (2) 17:4 18:13
proposed (3) 9:6 12:21 18:6
protected (1) 12:17
Protection (2) 8:14 12:24
proud (1) 17:6
provided (1) 14:19
PRPs (1) 10:8
PSC (2) 7:15,25
pubic (1) 17:16
public (20) 1:2,7 2:9 3:9,21,22 4:18 4:19 5:6,7 7:2 10:18 12:11 13:13 17:10 19:14,15,18 20:8,23
publicized (1) 4:17
PULP (2) 13:14 15:11
purposes (1) 4:19
pursuant (1) 4:15
pursuing (1) 9:7
pursuit (1) 10:6
push (1) 15:25
pushing (2) 10:13 16:8
put (1) 16:9

Q

quality (1) 10:4
quarters (1) 6:2
Queens (5) 6:4 14:2 17:7 18:16,20
questioning (1) 15:22
questions (1) 5:14

R

rate (11) 6:6,9,25 7:2,14 8:5 9:6 11:2 12:21 17:3 18:13
ratepayers (3) 7:4 8:2 16:9
rates (4) 1:4 3:4,13 16:7
rationale (1) 10:20
really (10) 3:17,19 4:3,7 14:23 15:2 15:7,8 16:3,6
reasonable (1) 18:8
rebuttal (1) 13:19
record (7) 9:2 19:8,8,9,11,12 20:12
reduce (1) 11:15
reducing (1) 6:13
reduction (1) 12:25
regarded (1) 18:21
region (2) 18:11,16
regionally (1) 12:18
regular (2) 10:3 17:20
Regulations (2) 1:4 3:4
related (4) 9:9 11:3 12:16 20:14
relating (1) 11:7
relationship (1) 12:22
release (1) 4:17
reliable (1) 18:17
reliant (1) 17:15
remarks (2) 16:19,23
remediation (3) 10:9,19,24
reminder (1) 10:5
renewable (2) 11:8,14
report (1) 4:13
reported (1) 20:10
reporter (2) 5:4 20:7
request (2) 6:6 7:16
requirement (1) 7:18
requires (1) 18:4
resident (1) 8:13
residential (3) 14:19 17:25 18:15
residents (6) 9:10,20 14:9,22 15:16 17:6
resource (2) 10:2 16:18
response (4) 5:16,19 16:14 19:2
responsibilities (1) 12:12
responsible (5) 10:8,12 17:14,25 18:22
responsive (1) 18:14
restart (1) 15:14
restore (1) 8:21
restricting (1) 9:24
result (1) 11:18
reveal (1) 8:21
review (1) 17:4
revitalize (1) 8:21
right (1) 14:18
risking (1) 6:15
risks (1) 9:19
river (1) 9:22
role (3) 3:19 4:3 8:18
routes (1) 11:21
Rules (2) 1:4 3:4

S

safe (2) 17:17 18:17
safely (1) 9:25
safety (1) 18:5
Sam (3) 2:8 13:7,12
sanitation's (1) 12:2
scheduled (1) 4:15
school (2) 1:7 14:14
scrutinize (1) 7:16
second (1) 11:7
Secondly (1) 11:6
sector (1) 17:16
see (4) 10:3 12:6 14:21 15:9
seeing (2) 14:21 15:23
seeking (1) 7:10
seeks (2) 12:24 13:21
seen (1) 16:2
seniors (1) 14:4
serve (1) 17:6
service (8) 1:2 3:6,9,13,21 4:18 5:8 17:9
Services (1) 1:6
session (1) 19:17
set (3) 6:25 11:3 20:11
setting (1) 3:17
settlements (1) 9:4
seven (1) 19:18
sharing (1) 4:7
shift (2) 11:15 12:11
short (1) 9:7
shutoff (1) 15:13
side (1) 12:20
significant (3) 9:19 11:25 18:4

significantly (1) 11:4
silence (1) 5:11
site (1) 8:25
six (1) 19:17
sixty (1) 7:5
small (1) 15:16
Smith (2) 20:7,22
soils (1) 9:18
solution (1) 7:25
somebody (1) 19:8
source (1) 11:14
sources (1) 9:4
Southeast (2) 17:7 18:16
Span (1) 6:8
speak (5) 4:6,21 5:2 8:17 17:3
speaker (5) 4:25 5:2,18 8:10 13:7
speakers (3) 2:3 19:4,14
spending (1) 6:13
Square (1) 1:8
ss (1) 20:4
stage (1) 10:23
stakeholders (1) 18:20
standards (1) 18:5
startups (1) 14:21
State (5) 5:23 6:22 10:17 20:3,9
stated (1) 13:23
statement (8) 1:7 3:23 4:19 5:6 19:7,14,16,18
statements (1) 5:3
Staten (1) 6:4
statistics (1) 14:3
stay (1) 19:5
Sternback (4) 2:10 16:15,16,17
strategy (1) 17:24
Street (1) 19:19
strong (1) 17:13
struggle (1) 6:22
struggling (3) 14:7,21,22
suffered (3) 8:22 10:14 12:15
summarize (2) 4:12,13
summary (1) 12:10
superfund (7) 7:22 8:16,25 9:9 10:23 11:3 16:8
supplies (1) 14:14
supply (1) 18:12
support (1) 17:3
supportive (1) 11:13
surging (1) 17:11
surrounding (1) 9:11
sustainability (1) 15:5
sustainable (1) 18:17
system (2) 11:12 18:18

T

tar (1) 9:22
technology (1) 18:10
ten (1) 10:25
term (1) 17:18
test (1) 10:4
testimony (2) 13:19,19
thank (16) 3:15 4:4,8,9 8:7,9,11 13:3,6,8 16:12,13 18:23,24 19:10 19:22
think (2) 3:16,23
thirteen (1) 14:10
thoughts (1) 4:7
three (4) 6:2,25 19:5,13
time (6) 7:24 13:3 18:23 19:3,7,23
today (11) 3:10,19 4:5,11 5:4 8:8 8:17 9:5 13:11 16:22 18:23
told (1) 15:13
Tom (3) 5:18 16:13 18:25
totally (1) 16:8
toxic (1) 9:3
traffic (1) 11:20
transcribed (1) 5:4
transcript (2) 5:5 20:11
transit (1) 16:21
translating (1) 7:11
transparency (2) 12:7 15:3
treatment (2) 11:10 12:4
triggers (1) 17:12
truck (2) 11:19,21
true (1) 20:12
try (1) 3:22
two (4) 5:6 7:5,12,23

U

ultimately (2) 3:12,13
unable (1) 6:18
unacceptable (1) 7:15
unaware (1) 10:16
uncertainty (1) 18:12
unclear (1) 11:23
understand (1) 10:20
understanding (1) 12:8
unfairly (1) 8:2
Union (4) 1:5 3:5 6:7 9:15
upcoming (1) 17:21
urge (1) 7:15
utility (9) 2:9 6:23 7:3 8:3,5 10:18 12:11 13:13,16
utility's (1) 7:17
utilizes (2) 11:10,24

V

voice (1) 9:5

W

waiting (1) 9:2
want (2) 14:23 16:21
wanted (1) 14:16
wants (1) 19:6
waste (3) 11:9,11 12:16
water (5) 8:22 9:23 10:3,4 11:9
waterway (1) 9:18
way (2) 4:22 20:16
we'll (4) 4:12,13 5:17,20
we're (5) 4:11 9:2 13:18 14:21 15:2
we've (1) 15:19
Website (1) 5:8
week (1) 5:5
Westchester (2) 20:5,9
Widelo (5) 2:5 5:21,22,23 8:9
wild (1) 9:24
Williamsburg (2) 9:12 11:22
Willis (3) 2:7 8:10,12
WITNESS (1) 20:19
wonderful (1) 3:17
word (1) 10:12
work (2) 17:7,8
worked (1) 8:20
workers (1) 9:20
working (1) 14:6
worrying (1) 14:23

X

X (2) 1:2,6

Y

year (2) 7:13 13:14
years (3) 6:25 8:23 10:25
York (12) 1:7,8 5:24 6:8,8,22,22 10:17 15:7 19:20 20:3,9

Z

0

1

10 (1) 4:16
11201 (1) 19:20
13.13 (1) 13:24
15% (1) 7:3
16.50 (1) 7:11
17 (2) 14:3,4
18 (1) 7:10
19-G-0309 (3) 1:3 3:2 5:9
1967 (1) 17:7

2

2 (1) 1:8
2:00 (1) 1:10
2002 (1) 8:20
2010 (1) 9:2
2013 (1) 3:22
2019 (3) 1:9 4:16 20:19
2020 (1) 20:23
2050 (1) 13:2
209 (1) 19:19
236 (1) 7:14

3

3:01 (1) 19:23
31 (1) 1:9
315,000 (1) 14:2

4

5

57 (1) 14:9

6

7

7th (1) 20:19

8

85 (1) 12:24